

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                 |                                     |                           |                                                        |                                    |                                 |
|---------------------------------------------------------------------------------|-------------------------------------|---------------------------|--------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Raquel Velasquez                                               | Team:<br>Squad #11                  | CCRB Case #:<br>201508120 | <input type="checkbox"/> Force                         | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                                                 |                                     |                           | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Monday, 09/21/2015 12:00 AM, Tuesday,<br>09/22/2015 7:00 AM | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>3/22/2017   | Precinct:<br>49                                        |                                    |                                 |
| Date/Time CV Reported<br>Fri, 09/25/2015 10:22 AM                               | CV Reported At:<br>CCRB             | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Fri, 09/25/2015 10:22 AM |                                    |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Subject Officer(s)      | Shield | TaxID  | Command  |
|-------------------------|--------|--------|----------|
| 1. DT3 Byran Pitts      | 00245  | 927362 | NARCB BX |
| 2. SGT Joseph Burckhard | 01130  | 941371 | NARCB BX |

| Witness Officer(s)  | Shield No | Tax No | Cmd Name |
|---------------------|-----------|--------|----------|
| 1. SDS Keith Geller | 02376     | 919096 | NARCB BX |

| Officer(s)               | Allegation                                                                   | Investigator Recommendation |
|--------------------------|------------------------------------------------------------------------------|-----------------------------|
| A . DT3 Byran Pitts      | Abuse: Det. Byran Pitts entered and searched § 87(2)(b) in the Bronx.        | A . Exonerated              |
| B . DT3 Byran Pitts      | Abuse: Det. Byran Pitts failed to show the search warrant to § 87(2)(b)      | B . Unsubstantiated         |
| C . SGT Joseph Burckhard | Abuse: Sgt. Joseph Burckhard failed to show the search warrant to § 87(2)(b) | C . Unsubstantiated         |

### Case Summary

On September 22, 2015, at approximately 7:00 a.m., Det. Bryan Pitts and Sgt. Joseph Burckhard, from Narcotics Borough Bronx, and members of their field team executed no-knock search warrant # § 87(2)(b) at § 87(2)(b) in the Bronx (**Allegation A) (Board Review 1)**). § 87(2)(b) was alone in the apartment and Det. Pitts and Sgt. Burckhard allegedly failed to show him a copy of the search warrant (**Allegation B**). § 87(2)(b) was arrested for § 87(2)(b) (**Board Review 2**).

This case is being submitted after the 90-day benchmark due to delays in obtaining a statement from § 87(2)(b) delays in obtaining police documents to identify the subject officers (the documents were not received until December 29, 2015), and numerous scheduling conflicts of the officers.

There is no video recording of this incident.

### Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- § 87(2)(b) did not file a Notice of Claim regarding this incident (**Board Review 3**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed regarding § 87(2)(b) (**Board Review 5**).
- Det. Bryan Pitts has been a member of the service for 15 years and there are 3 substantiated CCRB allegations against him. In case number 201112729, allegations of abuse of authority (stop, frisk, and search of person) were substantiated. The CCRB recommended charges and the NYPD issued instructions.
- Sgt. Joseph Burckhard has been a member of the service for 9 years and there are no substantiated CCRB allegations against him.

### Findings and Recommendations

#### Explanation of Subject Officer Identification

§ 87(2)(g)

#### Allegation A- Abuse of Authority: Det. Byran Pitts entered and searched § 87(2)(b), in the Bronx.

It is undisputed that officers entered and searched § 87(2)(b) in the Bronx. The investigation confirmed that Det. Pitts obtained a valid search warrant for the residence on § 87(2)(b), to be executed no later than ten days of its issuance (**Board**

**Review 1).** § 87(2)(b) also alleged that the entrance door, his bedroom door, and a plastic and wooden drawer were left damaged (**Board Review 6).** § 87(2)(g)

§ 87(2)(b). Therefore, it is recommended that **Allegation A** be closed as **Exonerated**.

**Allegation B- Abuse of Authority: Det. Byran Pitts failed to show the search warrant to**

§ 87(2)(b)

**Allegation C- Abuse of Authority: Sgt. Joseph Burckhard failed to show the search warrant to**

§ 87(2)(b)

It is not in dispute that when the warrant was executed, § 87(2)(b) was handcuffed and brought into the kitchen, where he remained throughout the search of the apartment.

§ 87(2)(b) stated that one of the officers spoke to § 87(2)(b) in Spanish, but he did not recall their conversation and two other officers told § 87(2)(b) that they had found contraband in his apartment. No other officer spoke to § 87(2)(b) or asked him any questions. § 87(2)(b) was never shown the search warrant and he did not ask any officer to show him the search warrant because he knows that officers are required to show one (**Board Review 6**).

Det. Pitts, who was the investigating and arresting officer, initially stated that § 87(2)(b) asked to see the search warrant, but he later clarified that he did not recall if § 87(2)(b) asked him specifically to see the search warrant and he denied hearing § 87(2)(b) asking any officer to see the search warrant. Det. Pitts explained to § 87(2)(b) that the officers were there to execute a search warrant and at some point while in the apartment, Det. Pitts did not recall when, Det. Pitts showed § 87(2)(b) the search warrant. There were other officers present when Det. Pitts showed § 87(2)(b) the search warrant, but he did not recall who they were (**Board Review 7**).

Sgt. Burckhard, who supervised the execution of the search warrant, stated that he and Det. Pitts obtained § 87(2)(b) pedigree information and Sgt. Burckhard asked § 87(2)(b) if he had any contraband or anything they should know about in the apartment. § 87(2)(b) did not acknowledge Sgt. Burckhard and did not answer his questions. Sgt. Burckhard then attempted to show § 87(2)(b) the search warrant while attempting to explain that they had a lawful search warrant to enter and search the apartment for contraband. § 87(2)(b) was uninterested and looked away. Other officers were present when Sgt. Burckhard attempted to show § 87(2)(b) the search warrant, but he did not recall who they were. Sgt. Burckhard did not know if any other officer attempted to show § 87(2)(b) the search warrant. § 87(2)(b) did not ask Sgt. Burckhard to see the search warrant. Sgt. Burckhard did not hear § 87(2)(b) ask any officer to show him the search warrant and no officer told Sgt. Burckhard that § 87(2)(b) asked to see the search warrant (**Board Review 8**).

Sgt. Geller, who was also present during the search warrant execution, corroborated that § 87(2)(b) was sitting in the kitchen when an officer, who he believed was Det. Pitts, extended the search warrant towards § 87(2)(b) and asked if he wanted to “see the copy of the warrant.” § 87(2)(b) turned his head away and did not reply (**Board Review 9**).

According to Patrol Guide Procedure 212-105, the member of service executing the search warrant shall, when able to do so safely, show a copy of the search warrant to any of the occupants of the premises **(Board Review 10)**. Criminal Procedure Law §690.50 states that when executing a search warrant, an officer must show or make a reasonable effort to show the search warrant or a copy of the search warrant upon request **(Board Review 11)**.

§ 87(2)(g)

Therefore, it is recommended that **Allegations B** and **C** be closed as **Unsubstantiated**.

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Squad: **11**

Investigator: \_\_\_\_\_  
Signature Print Date

Supervisor: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date